

Ratifying Community Governance Documents

The process from final draft to binding law

September 29, 2026

What this guide does

A governance document is only as strong as the way it was adopted. A code that Council passes on its own can be changed by the next Council on its own, and a court may treat it as invalid if the law or the community's own rules required a member vote. This guide sets out which approval each type of document legally needs, the steps to run a ratification vote that holds up if someone challenges it, and the paper record you need to keep. Deadlines come first because missing one can end a challenge before it starts.

Read this first

This guide is not legal advice. Everything marked as law below comes from the current federal statutes and government policy linked in Section 10. Everything marked as a recommendation is practice, not a legal requirement. Before a vote, have a lawyer who practises Aboriginal law, and the government office listed for that document type, confirm the pathway for your Nation.

1. Deadlines and Time Limits

These are the limits set in law. Each one is quoted or cited from the source in Section 10.

Time limit	What it applies to	Source
30 days	Filing a judicial review in Federal Court against a decision of a band council, electoral officer or appeal body. The clock starts when the decision is first communicated to the person affected. A judge can extend it, but don't count on that.	Federal Courts Act, s. 18.1(2)
Day of publication	A by-law made under the Indian Act comes into force the day it is first published on an Internet site, in the First Nations Gazette, or in a newspaper circulating on reserve, or on a later date the by-law sets.	Indian Act, s. 86(1) and 86(4)
For as long as it's in force	A by-law published online must stay accessible online the whole time it is in force. Council must also give a copy to anyone who asks.	Indian Act, s. 86(2), 86(3), 86(5)
Day after approval	A financial administration law under the First Nations Fiscal Management Act has no force until the First Nations Financial Management Board approves it. It comes into force the later of its stated date or the day after approval.	FNFMA, s. 9(2) and 9(3)
Date of notice to Minister	Membership rules adopted under the Indian Act take effect the day Council gives the Minister written notice after members consent.	Indian Act, s. 10(6) and 10(8)

Recommendation

Put every internal deadline from your own documents in the same table before the vote starts: petition verification days, notice periods, appeal windows, posting deadlines. People lose challenges on dates, not arguments.

2. Which Approval Each Document Needs

The first question is never how to run the vote. It's what the law says makes this particular document valid. The answer changes by document type.

Document type	Who must approve	Key requirements	Source
Amendment to an existing custom election code	The members, through whatever amendment process the current code sets out.	Follow the existing code's amendment clause exactly. Courts define custom as practices with broad consensus of the members. ISC states it is never involved in custom elections and won't rule on their validity.	Federal Court case law on custom elections; ISC statements in the Canada Gazette
New code converting from Indian Act elections	Members by secret ballot, then the Minister by order.	Code must be written, provide appeals without ISC, require member concurrence for amendments, follow natural justice, and respect Charter rights including off-reserve voting and eligibility to hold office.	ISC Conversion to Community Election System Policy

Document type	Who must approve	Key requirements	Source
Membership rules (Indian Act route)	Majority of the electors of the band, after appropriate notice.	Rules must be in writing. They can't remove anyone's existing right to be on the Band List. Council then notifies the Minister.	Indian Act, s. 10(1), 10(2), 10(4), 10(6)
By-laws under s. 81 (local matters)	Council, by majority of councillors present at a duly convened meeting.	Must not conflict with the Indian Act or its regulations. Must be published. No ministerial disallowance since December 16, 2014.	Indian Act, s. 2(3)(b), 81, 86
Money by-laws under s. 83	Council, then the Minister.	Minister may approve all or part.	Indian Act, s. 83(1), 83(4)
Intoxicant by-laws under s. 85.1	Majority of electors who vote at a special meeting called for that by-law.	The vote must come before Council makes the by-law.	Indian Act, s. 85.1(2)
Financial administration law	Council, then the Financial Management Board.	Must meet the Board's standards. Published in the First Nations Gazette.	FNFMA, s. 9
Land code	Eligible members 18 and over, on or off reserve, through a verified community approval process.	A verifier confirms the code and process first. Council must take reasonable steps to locate voters and inform them.	First Nations Land Management Act, s. 10 to 12
Codes of conduct, conflict of interest codes, policies	Council by resolution at minimum.	No statute requires a member vote. A member vote plus an entrenchment clause makes them much harder for a future Council to repeal.	Indian Act, s. 2(3)(b); recommendation

Where reform codes usually die

Council-only changes to a custom election code are the most common way these documents fail. The Federal Court has held election rules invalid where there was no evidence they were ever put to the community for approval, even where the code itself let Council draft them. An unratified draft has no legal force no matter how much work went into it.

Unresolved: majority of what?

The ISC Conversion Policy text says a code is approved if "a majority of electors (50 percent + 1) vote by secret ballot to approve it," or in another manner the First Nation and ISC agree on. Recent Canada Gazette orders describe approval as a majority of the votes cast. Those are different tests. If you are converting from Indian Act elections, get the ISC regional office to confirm in writing which test they'll apply before the vote is called.

3. The Ratification Process, Step by Step

These steps meet the legal requirements above and build the record a court looks for when a vote is challenged. Steps marked **law** are required for at least one document type. The rest are recommendations.

Step 1. Confirm the pathway

- Identify the document type and its legal approval route from Section 2.
- Pull the current governing document, such as the existing election code, and copy its amendment and referendum clauses word for word.
- Write down the approval threshold, notice period and who can call the vote. Use the exact figures, not a summary.

Step 2. Finish the draft and get it reviewed

- Final draft with numbered sections, definitions, and a plain language summary on the front.
- Legal review for conflicts with the Indian Act, Criminal Code, Charter and other federal law.
- Companion verification document: section by section, what it says, what changed from the last ratified version, and what it means for members.

Step 3. Community engagement before the vote

- Post the full draft where every member can get it: band office, website, mail on request, and email.
- Hold information sessions on reserve and in the urban centres where members live. Record them and post the recordings.
- Open a written comment period. Sixty days is a reasonable length. Publish a summary of the comments and what changed as a result.
- **Law** for land codes and membership rules: members must be informed of their right to vote and the content of what they're voting on.

Step 4. Call the vote properly

- Council resolution at a duly convened meeting setting the vote date, the exact question, and the officer. **Law:** s. 2(3)(b) requires a majority of councillors present.
- If your governing documents allow a member petition to force a vote, verify signatures against the voters list and record the count.
- Budget the full cost of the vote in the same resolution so funding can't be used to stall it later.

Step 5. Appoint an independent officer

- Ratification officer with no family, financial or employment tie to the Nation or any Council member.
- Written terms of appointment stating the officer can't be removed during the vote period.
- The officer, not Council, controls the voters list, ballots, count and certification.

Step 6. Build and post the voters list

- Every eligible voter, on and off reserve. **Law:** under the ISC policy and the Land Management Act, off-reserve members vote.
- Post it for a correction period. Record every addition and removal with a reason and date.
- Use real effort to find current addresses. Keep the record of what you did.

Step 7. Send the notice package

- Full text of the document, the plain language summary, the exact ballot question, dates, polling places and times.
- Mail-in ballot instructions and deadlines. Off-reserve members need a realistic way to vote.
- How to ask questions and who to contact. Send well ahead of the vote. Sixty days is a reasonable target.

Step 8. Run the vote

- Secret ballot. **Law** under the ISC Conversion Policy.
- One question per document. Don't bundle unrelated changes into one yes or no.
- Advance poll, mail-in and in-person options. Scrutineers from each side allowed to watch the count.

Step 9. Count, certify and post

- Officer counts in the presence of scrutineers and records ballots cast, spoiled, yes and no.
- Officer signs a certificate of results and a sworn affidavit describing every step taken. **Law** for conversions under the ISC policy.
- Results posted within a set number of days. Five business days is common in reform codes.

Step 10. Make it official

- Council resolution adopting the ratified document, citing the certified result.
- Publish it. **Law** for by-laws under s. 86.
- Send required submissions: ISC for conversions, the Financial Management Board for financial administration laws, the Minister for membership rules.
- Keep every ballot, list and record for at least ten years in secure storage.

4. Sample Timeline

This is a working schedule, not law. Replace any line with a longer period your governing documents require.

When	What happens
Day minus 150	Pathway confirmed. Current code clauses copied. Legal review ordered.
Day minus 120	Final draft, plain language summary and verification document published. Comment period opens.
Day minus 90	Council resolution calling the vote, setting the question and budget. Ratification officer appointed.
Day minus 75	Draft voters list posted. Correction period opens.
Day minus 60	Comment period closes. Comment summary published. Notice packages and mail-in kits sent.
Day minus 60 to minus 14	Information sessions on reserve and in urban centres. Recordings posted.
Day minus 30	Voters list finalized. Mail-in ballots must be requested by this date.
Day minus 7	Advance poll.
Day 0	Vote. Count with scrutineers. Preliminary result announced.
Day plus 1	Certificate of results signed and posted.
Day plus 5 business days	Appeal window closes under the ratification rules.
Day plus 30	Federal Court judicial review window closes for most decisions. Adoption resolution passed and document published.

5. Choosing the Approval Threshold

Where the law leaves the threshold to the Nation, the choice decides whether the document can pass at all, and whether it can later be undone.

Threshold	How it works	Risk
Majority of votes cast	More yes than no among valid ballots.	Low turnout can let a small group decide.
Majority plus minimum participation	Majority of votes cast, and yes votes or turnout must exceed a set share of all eligible voters.	Floor too high and nothing passes. Common middle ground.
Double majority	A majority of all eligible voters must vote, and a majority of those must vote yes.	Hard to reach where many members are hard to contact.
Supermajority	Two thirds, 75 percent or similar.	Protects entrenched rights, but can freeze reform for years.

Thresholds cut both ways

A very high threshold, such as 75 percent support for any change, can leave old rules in place for decades even when most members want change. Set the bar for adopting a reform code at a level it can realistically meet. Then set a higher bar for weakening it.

6. Protecting the Vote From Obstruction

A vote that's been called properly can still be stalled. These clauses belong in the ratification law or the resolution calling the vote. They are recommendations drawn from reform codes.

- No individual official can halt, postpone or defund a vote that has been properly called.
- Only a court order issued on notice stops a vote. A court filing by itself doesn't.
- The ratification officer can't be removed or replaced during the vote period.
- Funding is set aside in the resolution that calls the vote.
- If Council fails to act within a set time after a valid petition, the petitioners can ask a named outside body, such as the tribal council, to appoint the officer.
- Every request, refusal and delay is put in writing and dated. That record becomes evidence if you go to court within the 30-day window.

7. The Evidence Package

If the result is challenged, this is what a court or ISC will ask to see. Build it as you go, not afterward.

Record	Why it matters
Final text as voted on, dated and initialled by the officer	Proves exactly what members approved.
Council resolution calling the vote	Shows the vote was properly authorized.
Petition and verification record, if used	Shows the threshold was met.
Officer's appointment and terms	Shows independence.
Voters list, every version, with changes logged	Shows who could vote and that errors were fixed fairly.
Copies of every notice, with proof of mailing and posting	Shows members were informed. A common attack point.
Information session recordings and attendance	Shows the content was explained.
Comment summary and response	Shows the community shaped the final text.
Ballot sample, counts, spoiled ballot log	Shows the result is accurate.
Certificate of results and officer's affidavit	Required for conversions. Strong evidence for everything else.
Adoption resolution and proof of publication	Shows the document took effect properly.

8. Common Failure Points

Most failed ratifications fail on process, not content.

Failure	Fix
Council adopts or amends an election code by resolution only	Put it to the members as the current code requires.
Off-reserve members not notified or can't vote by mail	Mail-in ballots and real address tracing, documented.
Unratified draft treated as if it were in force	Label every draft as a draft. Only the signed, ratified version governs.
Several unrelated changes bundled into one question	One question per document, or per major change.
Threshold in the new code differs from the old code's amendment rule	The old code's rule governs the vote on the new one.
Officer has ties to Council or a candidate	Independent outside officer with written terms.
New code lets Council amend it alone	Member approval for every amendment. Required for ISC conversions.
No written record of the process	Build the evidence package in Section 7 as you go.

9. Who Can Confirm

Get written confirmation from the right office before calling the vote.

Question	Who to ask
Custom election code conversion and what ISC will accept	Indigenous Services Canada regional office, governance or elections unit
Financial administration law standards	First Nations Financial Management Board
Land code and community approval process	First Nations Land Management Resource Centre and the assigned verifier
Whether a document conflicts with federal law, and challenge risk	A lawyer who practises Aboriginal and administrative law
Regional practice and support	Your tribal council's governance staff

10. Sources

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- Indian Act, R.S.C. 1985, c. I-5, ss. 2(3), 10, 81, 83, 85.1, 86: laws-lois.justice.gc.ca/eng/acts/I-5/FullText.html
- Indian Act Amendment and Replacement Act, S.C. 2014, c. 38: laws.justice.gc.ca/eng/AnnualStatutes/2014_38/FullText.html
- ISC, Changes to By-laws: sac-isc.gc.ca/eng/1421864597523/1565371978843
- ISC, Conversion to Community Election System Policy: sac-isc.gc.ca/eng/1433166668652/1565371688997
- Canada Gazette Part II, Orders Amending the Indian Bands Council Elections Order, regulatory impact statements, 2023 to 2025: gazette.gc.ca
- Federal Courts Act, s. 18.1: laws-lois.justice.gc.ca/eng/acts/F-7/section-18.1.html
- First Nations Fiscal Management Act, s. 9: laws-lois.justice.gc.ca/eng/acts/F-11.67/
- First Nations Land Management Act, ss. 10 to 12: canlii.org/en/ca/laws/stat/sc-1999-c-24/latest/
- Federal Court Trial Division decisions on custom election codes, 1992 and 1996 (full citations available on request)

Verify before relying on

The Land Management Act figures come from the current CanLII text, which lets each First Nation set its own minimum participation. The older fixed 25 percent floor was removed by a 2018 amendment according to a Yellowhead Institute factsheet. Confirm the current rule with the Resource Centre before relying on it.